

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

VISUAL COMFORT & Co., *Complainant*

v.

COSCO SHIPPING LINES Co., LTD, *Respondent*.

DOCKET NO. 24-01

Served: July 17, 2024

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

**PARTIAL ORDER ON MOTIONS TO COMPEL, MOTION FOR ENTRY OF PROTECTIVE ORDER, AND
MOTION FOR ENLARGEMENT OF PAGE LIMITS**

I. Overview

A. Background

On May 16, 2024, the undersigned conducted a video status conference with the representatives of the above parties to discuss the status of discovery. The reason for the conference was to discuss discovery issues that the parties raised in their May 10, 2024, Joint Status Report (“JSR”). The parties also requested to amend the schedule¹ “to enable the Parties to resolve these issues with a minimum of intervention from the Presiding Officer....” JSR at 2. An interim scheduling order issued on May 14, 2024, extending the discovery schedule by two weeks, rather than the two months the parties sought, and stating that an order would issue “sometime after the conference and will include an amended schedule for discovery and briefing.” Order Setting Status Conference and Interim Scheduling Order at 2. At the conference, during which the parties reiterated that they had not provided documents in response to the other party’s request, the parties were encouraged to resolve their discovery disputes, and if they could not, to file motions to compel by May 31, 2024. On the same day as the status conference, the Respondent filed a Consent Motion for Entry of Protective Order, and Complainant did not object. Accordingly, this motion is **GRANTED**.

Respondent COSCO Shipping Lines Co., Ltd (“COSCO”) filed two separate motions to compel on May 30, 2024, as well as a Motion for Enlargement of Page Limits, and Complainant Visual Comfort & Co. (“VCC”) filed a motion to compel on June 1, 2024.² As explained further

¹ The parties are reminded that “any request for action must be made by motion, not by letter or email request or as part of a joint status report.” Initial Order at 4.

² Complainant’s counsel is on the West Coast, and the motion was filed shortly after midnight eastern standard time (“EST”). Complainant is reminded that scheduled dates and times are

below, Respondent's motion to compel production of documents and one admission, and Complainant's motion to compel discovery are **GRANTED IN PART** and **DENIED IN PART**. Respondent's motion to compel interrogatories is **DEFERRED** pending a video hearing to resolve outstanding requests. Respondent's Motion for Enlargement of Page Limits is **GRANTED**.

II. Motion to Compel Standard of Review

The Commission's Rules permit discovery "regarding any nonprivileged matter that is relevant to any party's claim or defense." 46 C.F.R. § 502.141(e)(1).

On motion or on its own, the presiding officer may limit the frequency or extent of discovery otherwise allowed by these rules if the presiding officer determines that:

(A) The discovery sought is unreasonably cumulative or duplicative, or can be obtained from some other source that is more convenient, less burdensome, or less expensive;

(B) The party seeking discovery has had ample opportunity to obtain the information by discovery in the action; or

(C) The burden or expense of the proposed discovery outweighs its likely benefit, considering the needs of the proceeding, the amount in controversy, the parties' resources, the importance of the issues at stake in the action, and the importance of the discovery in resolving the issues.

46 C.F.R. § 502.141(e)(2)(ii). The Commission's Rules also permit the presiding officer to "issue an order to protect a party or person from annoyance, embarrassment, oppression, or undue burden or expense." 46 C.F.R. § 502.141(j). Further, the Commission's Rules governing the production of documents or electronically stored information provides that parties "must produce the documents as they are kept in the usual course of business or must organize and label them to correspond to the categories in the request" and "need not produce the same electronically stored information in more than one form." 46 C.F.R. § 502.146(b)(2)(v)(A, C).

III. Motions to Compel

a. Respondent's Motion to Compel Production of Documents

Both parties stated at the status conference on May 16, 2024, that they had not exchanged any documents despite the deadlines in the Scheduling Order which adopted the discovery schedule the parties proposed, because they could not agree on terms for a protective order. On the day of the status conference, a proposed Protective Order was filed and is approved. Consent Motion for Entry of Protective Order at 1-2. Despite the resolution of that hurdle, the parties continue to disagree about responses to discovery requests. Respondent asserts that it conferred

based on EST and future filings could be rejected if filed late without a motion setting forth good cause for the late filing.

with Complainant regarding the deficiencies it perceives in VCC's response to COSCO's requests for production of documents. Respondent's First Motion to Compel Production of Documents ("RMTC Docs") at 1. Complainant opposed RMTC Docs stating that it was moot because "VCC has now adequately responded to all of Respondent's requests, without undue objection, and is completing a full forensic scan of email and hard drive documents to complete an even more fulsome production in the coming weeks." Complainant's Response in Opposition to Respondent's First Motion to Compel Production of Documents ("C Opp Docs"). COSCO disagrees. Response of COSCO Shipping Lines Co. Ltd. to Complainant Visual Comfort & Co's Motion to Compel Discovery ("R Reply") at 1. Although framed as an opposition to VCC's Motion to Compel, COSCO also addresses VCC's response to COSCO's motions to Compel. R Reply at 1. A moving party may not file a reply to a response to a motion to compel "unless requested by the presiding officer, or upon a showing of extraordinary circumstances." 46 C.F.R. § 502.150(a)(4). Here, Respondent neither requested to file a reply or was asked to provide one. Extraordinary circumstances are not presented, and that portion of Respondent's response to Complainant's motion to compel is stricken.

Respondent begins the motion to compel production of documents by admitting that "production of documents has been delayed on both sides." RMTC Docs at 2. In addition, Respondent notes that "VCC responded to our Notice of Deficiencies...[and it] suggests the deficiencies may be able to be resolved by Counsel." *Id.* at n.2. Finally, Respondent asserts that if the deficiencies are cured, they will "withdraw any discovery responses that no longer need the attention of the Presiding Officer." *Id.* None have been withdrawn as of the date of this Order.

While it is not clear how many requests for documents Respondent served, it seeks an order to compel for document requests 1-14, which is presumably all of them based on Respondent's statement that no documents have been provided.³ *Id.* at 2. To the extent the parties have not followed the interim scheduling order and provided documents or since stipulated to what will be provided and when, they must do so as described and by the date set below.

The first request seeks copies of the documents used to respond to the interrogatories (discussed below). Respondent makes no argument as to why this request should be compelled, but it says now that a protective order is in place, it expects "prompt production...." RMTC Docs at 3. VCC responds that it "has agreed to produce responsive documents as they become available." Response to RMTC Docs at 3.⁴ To the extent that it has not done so, and because it does not offer any objection to doing so, Complainant must produce the responsive documents by July 31, 2024.

Respondent's RFD2 seeks any document "identified in response to any interrogatory above." While Respondent acknowledges that VCC stated it will produce any non-privileged documents, it also notes that VCC objected "to the extent it requests documents which are publicly available and/or also already within Respondent's possession, access, or control."

³ Respondent's Request for Documents will be numbered "RFD1," RFD2," and etc.

⁴ Complainant is reminded to paginate all filings. The Response to RMTC Docs is missing page numbers on all but the first page.

RMTC Docs at 3. Respondent counters that compelling production establishes that VCC had the document and then the document will be “self-authenticating.”

Commission Rule 502.141 states: “the presiding officer may limit the frequency or extent of discovery otherwise allowed by these rules if the presiding officer determines that: (A) The discovery sought is unreasonably cumulative or duplicative, or can be obtained from some other source that is more convenient, less burdensome, or less expensive....” 46 C.F.R.

§ 502.141(e)(2)(ii)(A). Here, Respondent acknowledges that it may have some of the documents identified in Complainant’s responses to the interrogatories, and it cites to no authority that it is entitled to documents that it already has in its possession, or which are publicly available. Complainant need not produce those documents which Respondent possesses or is publicly available, but any document that it otherwise identified in the responses to interrogatories must be provided by July 31, 2024.

RFD3 seeks “all documents upon which Complainant intends to rely to support any allegation or Count of its Complaint.” RMTC Docs at 3. As with RFD1, Respondent notes that VCC responded it would produce the documents, and it awaits such production. No objection to or argument for the request is provided. Consequently, Complainant must provide all non-privileged responsive documents by July 31, 2024. This request appears to cover most of the requests for documents that are not made solely to support a stated defense, so as this document request overlaps with others, Complainant need only provide the requested documents once. Similar to the above, Complainant need not produce documents that are publicly available or in the possession of Respondent.

RFD4 seeks shipping documents “relating to any payments VCC made or any invoices VCC received for any of the Charges in the Complaint.” RMTC Docs at 3. RFD5 similarly seeks shipping documents for any “alternate transportation arrangement for shipments allegedly declined by Respondent.” RMTC Docs at 4. RFD6-9 request copies of Service Contracts between the parties, correspondence between the parties regarding Service Contracts, documents “relating to Complainant’s claim for, and calculation of damages set out in Allegation 52,” and the documents Complainant identified in its initial disclosures. RMTC Docs at 4. Again, Respondent asserts that VCC responded it would provide non-privileged documents, and there are no objections to or arguments in support of these requests, so non-privileged responsive documents must be provided by July 31, 2024.

RFD10 is set forth by Respondent, but no response or argument is provided as set forth in Rule 502.150(a)(2)(ii), (iii), and (v). Because there is no indication that Complainant responded to this request, it is ordered to respond to the request by July 31, 2024, if it has not already done so.

RFD11-13 seek “internal and external communications” regarding charges and/or responsibility for payments that VCC alleges it paid to COSCO or that it paid to another entity. RFD14 seeks “all contracts and agreements VCC had for the transportation of the shipments in question.” RMTC Docs at 5. Again, Respondent asserts that VCC responded it would provide non-privileged documents, and there are no objections to or arguments in support of these requests, so non-privileged responsive documents must be provided by July 31, 2024.

b. Respondent's Motion to Compel Adequate Responses to Requests for Admission and Interrogatories

Turning to Respondent's First Motion to Compel Adequate Responses to Requests for Admission and Interrogatories ("RMTC A&I"), Respondent served requests for admission ("RFA") and interrogatories ("INT") on March 27, 2024, and Complainant responded on April 26, 2024. Respondent asserts that Complainant's responses to "many of these...consisted of specious objections and/or entirely inadequate answers." RMTC A&I at 1. Counsel then conferred and Respondent provided Complainant with a list of what it views as deficiencies. *Id.*; Attachment C. As in RMTC Docs, Respondent asserts that it received the supplemental responses "as we were going to press with these Motions" but also said "we will of course withdraw any discovery responses that no longer need the attention of the Presiding Officer." RMTC A&I at 1, n.1. None have been withdrawn.

Only one RFA is identified by Respondent's motion as subject to disagreement and for which it seeks an order compelling Complainant to respond (Respondent's Attachment C provides every RFA it sought, the response by Complainant, and Respondent's explanation of deficiency, which added to the already voluminous discovery motion filings made by both parties). RMTC A&I at 2-3; Attachment C at 3.⁵ RFA 8 states: "Admit that Complainant did not use COSCO's FMC-recognized process for seeking relief for waiver/credit or refund of charges." *Id.* Complainant responded that it "objects to this request as seeking information in the possession of, known to, or otherwise equally available to Respondent. As alleged in footnote 1 of the Amended Complainant, VCC lacked the particular documentation COSCO required in order to utilize this process." *Id.* Respondent noted in the deficiency filing that "[t]he objection is invalid for the reason identified above in 'General Deficiencies.'" *Id.*

Complainant filed Supplemental Responses to Respondent's First Set of Discovery Requests ("CSupp") on May 31, 2024. In the supplemental response to RFA 8, Complainant responded: "Admit that Complainant did not use COSCO's FMC-recognized process for seeking relief for waiver/credit or refund of charges." CSupp at 4.

A request for admission that seeks "any nonprivileged relevant matters relating to fact, the application of law to fact, or opinions about either, and the genuineness of any described documents..." must be answered as set forth in Commission Rule 502.147(a)(4): "[i]f a matter is not admitted, the answer must specifically deny it or state in detail why the answering party cannot truthfully admit or deny it." 46 C.F.R. §502.147(a)(4). Accordingly, Complainant has now sufficiently responded to Respondent's RFA 8, and the motion is denied as to this request.

⁵ Respondent did not number Attachment C. The numbers referencing Attachment C herein do not include the cover page.

Moving to the interrogatories for which Respondent moved to compel responses, they, too, were addressed in Complainant's supplemental responses.⁶ Respondent has not indicated that it is satisfied with Complainant's supplemental responses to any of the 23⁷ interrogatories identified in the motion to compel. Due to the number of Respondent's interrogatories at issue and the supplemental responses provided after the motion was filed, and pursuant to 46 C.F.R. § 502.141(i)(1), I have determined that a video conference will be more efficient at narrowing what, if any, interrogatories remain at issue. If the parties have resolved their differences, or already narrowed the number of Respondent's interrogatories that remain at issue, Respondent must file a list of interrogatories it wishes to raise at the conference but should reserve argument for the hearing. Based on the list provided by Respondent, Complainant should be prepared to argue its position, as well. The list of Respondent's outstanding interrogatories, if any, should be provided by July 24, 2024. If the parties have resolved their disagreement over the 23 interrogatories, Respondent should withdraw that portion of its motion to compel by July 24, 2024. The video conference will be held at 10:00 a.m. on July 26, 2024 absent such withdrawal.

In preparation for the video conference, I note that many of VCC's original responses to COSCO's interrogatories include that the requests are premature, which Respondent argues is not a valid objection, citing to Rule 502.141(k). RMTC A&I at 3. Commission Rule 502.141(k) states in pertinent part that "[a] party who has...responded to an interrogatory, request for production, or request for admission, must supplement or correct its disclosure or response: (i) In a timely manner...if the additional or corrective information has not otherwise been made known to the other parties...." 46 C.F.R. § 502.141(k). Complainant asserts that it has corrected and/or supplemented its responses to the interrogatories and RMTC A&I should be dismissed as moot. C Opp to RMTC A&I at 2-4.

The parties are reminded that "discovery is intended to make trial 'less a game of blind man's b[l]uff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent....'" *Gilmore v. City of Minneapolis*, 2014 WL 4722488, at *6 (D. Minn. 2014), citing *United States v. Procter & Gamble Co.*, 356 U.S. 677, 683, 78 S. Ct. 983, 2 L. Ed. 2d 1077 (1958). The Commission's Rule regarding the scope of interrogatories at 46 C.F.R. § 502.145(a)(2) is consistent with the language in FRCP 33(a)(2) and states:

An interrogatory may relate to any matter that may be inquired into under § 502.141(e) and (f). An interrogatory is not objectionable merely because it asks for an opinion or contention that relates to fact or the application of law to fact, but the presiding officer may order that the interrogatory need not be answered until designated discovery is complete, or until a prehearing conference or some other time.

Of import in considering discovery requests is relevance: "[f]or good cause, the presiding officer may order discovery of any matter relevant to the subject matter involved in the action."

⁶ Complainant does not include INT 13 in the opposition discussion, but it does attach the supplemental response that will be considered below.

⁷ Respondent's motion addresses 21 interrogatories it finds deficient, while Attachment C sets forth and discusses 23 interrogatories. Since respondent proceeded each numbered interrogatory with a different number that denotes how many interrogatories are seemingly at issue, it appears that Respondent may have confused the numbers. RMTC A&I at 4, Attachment C at 5.

46 C.F.R. § 502.141(e)(1). Regardless of whether Complainant cited to lack of relevance in its responses or objections to Respondents' discovery requests, the undersigned will consider it in deciding whether to order a further response.

Complainant's supplemental responses provide the most current version of discovery responses filed. Complainant supplemented its responses to INT 1, 3, 9-13, 15-23, 28 and 29,⁸ and maintains that those are now moot, and Complainant "has withdrawn the prematurity objection at issue." C Opp to RMTC A&I at 2. Complainant further contends that it "has affirmatively promised to supplement its productions because discovery is ongoing and the collection of relevant information continues, especially concerning information held by relevant third-parties (sic)." *Id.* at 4.

Complainant's supplemental responses are still prefaced with 1 ½ pages of "general objections" that include burdensomeness, relevancy, attorney-client privilege, and attorney work product, among others. One general objection refers to Complainant's willingness to respond to requests for confidential documents after a protective order is in place, and the parties had stipulated to one at the time of the supplemental responses. C Opp RMTC A&I Exhibit A at 2. Accordingly, some of these general objections did not pertain to the requests and added to the volume and confusion of the responses. In addition, including the responses to every request for admission and every interrogatory is unnecessary. For future motions to compel, both parties should submit only those discovery requests and responses that are raised in their motion to compel.

Regarding any interrogatory response where Complainant originally objected to the response as "premature" and now withdraws that objection, Complainant is reminded that it must be prepared to pursue its case (or any future case it may file), including providing responses to discovery requests when propounded according to the schedule, to the extent possible at that time. If it is not able to prosecute its case, it risks involuntary dismissal. 46 C.F.R. § 502.72(b) ("If the complainant fails to prosecute...a respondent may move to dismiss the action or any claim against it..."). Here, the parties proposed the schedule, which indicates that Complainant was prepared to go forward with discovery. Any interrogatories which Complainant can supplement further should be done so immediately, and prior to the video conference.

c. Complainant's Motion to Compel Production of Documents

Turning now to Complainant's motion to compel, Complainant raises issues with respect to document requests ("RFD") 4, 5, 6 and supplemental requests ("SRFD") 1, 3, 4, and 5. Complainant's First Motion to Compel Production of Documents ("C MTC Docs") at 1-6.

Respondent's response in opposition to Complainant's motion to compel notes first, that VCC's motion was not timely filed. That has been addressed above, but one inconsistency raised by Respondent in that section of its response warrants discussion. Respondent states that at the status conference held on May 16, 2024, "the Presiding Officer made clear that because she intended to issue a final scheduling order on May 31, 2024, the Parties were to file any Motions

⁸ It is assumed that Complainant's referral to INT 19 twice in a list of supplemented interrogatories was an error and that the second time Complainant intended to refer to INT 29.

to Compel by Friday, May 31, 2024.” Counsel who filed the response was not present at the status conference and is incorrect regarding the timing of an amended scheduling order. The undersigned made no statement regarding when an amended scheduling order would issue, and such an order could not issue on the same day motions to compel were due because the content of those motions and the findings regarding them must necessarily impact any amendment to the scheduling order. The parties were instructed, however, to follow the interim scheduling order until any further amendment issued.

RFD 4 asks for service contracts and other agreements between Respondent and “the parties identified in Respondent’s Initial Disclosures.” Complainant’s motion to compel lists RFD 4 and Respondent’s objection to it (that it is “overly broad, vague, and unduly burdensome”), but there is no explanation or argument as to the relevance. C MTC Docs at 2. There is no indication in either party’s motion or response as to how many parties were identified in the initial disclosures, but Complainant is correct that the assignment of claim executed by RIM puts it in the stead of RIM and entitled to the agreement(s). Other service contracts or agreements could be relevant, but that has not been demonstrated. Similarly, the confidentiality of such agreements has not been addressed. Without a cogent argument regarding the relevance of third-party service contracts or other confidential agreements, including case authority, only the RIM agreement must be provided.

RDF 5 requests “all receipts issued to any third parties who forwarded detention, demurrage, and storage payments from Complainant during the relevant time period.” C MTC Docs at 2-3. Respondent objected that this, too, was overly broad, vague, and unduly burdensome and added “no such receipts exist as every receipt issued by Respondent was to an entity liable directly to COSCO...COSCO has no way of identifying what Complainant may or may not have paid third parties.” *Id.* at 3. Complainant argues that the request is reasonable and that it “stands in the shoes of RIM Logistics, which was accessed (sic) those same Charges.” *Id.* In addition, Complainant asserts that the request is “narrowly tailored to those payments relevant to the shipments at issue.” *Id.* While Complainant may think the request as worded is narrowly tailored to shipments it has identified, it is not, but it is clear from both parties’ submissions that Complainant has identified at least some shipments of its cargo, and Respondent must produce those receipts issued to the third parties to which it charged detention, demurrage, storage, etc. for the identified shipments only. Receipts issued to RIM must only be provided if they are associated with the shipments that Complainant identifies, because RIM has engaged in business with Respondent on behalf of other customers. R Opp to C MTC at 6.

RDF 6 seeks correspondence between Respondent and whatever parties were identified in the Complainant’s and Respondent’s initial disclosures related to 6 issues regarding port congestion. Respondent objects, saying that each of the six subparts are “irrelevant to any claims or defenses that have arisen or may arise in this proceeding.” C MTC Docs at 4. Despite that objection, Respondent provided some documents. Complainant asserts that the request “is precisely limited to those communication relevant to the claims at issue in this case and between those entities that the Respondent affirmatively listed in its Initial Disclosures as possessing knowledge of relevant facts.” *Id.* Respondent notes it provided some documents and otherwise continues its objections and states that it needs clarification as to “what correspondence [VCC] seeks and from which specific parties.” R Opp to C MTC at 6. Finally, it notes that “it is very difficult for COSCO to identify which RIM shipments contained VCC’s cargo, as VCC was not

COSCO's customer." *Id.* If Complainant and Respondent have not reached an understanding on this request, then Complainant can submit it for argument at the video conference. There is too little information provided for me to know what third party companies Respondent identified in its initial disclosures or what documents it provided in response to this request. If this request is raised at the video conference, Complainant must be prepared to explain the relevance of each subsection of the request to specific paragraphs of the complaint. Since Respondent provided 18-pages of documents in response to this request, it appears that it understood the request well enough to identify and provide some correspondence, so Respondent should be prepared to explain what further clarification it needs to fulfill the request.

Complainant's supplemental requests for documents ("SRFD") were briefly discussed during the May 16, 2024 status conference. At that time, I told Complainant that I did not think requests for generalized data regarding COSCO's income, revenue, and the like were relevant, and Complainant has not convinced me (or even argued) that such documents are relevant to this proceeding for the timeframe sought. In the motion, Complainant asserts that Respondent agreed to produce detention, demurrage, per diem, and yard storage income on a quarterly basis in response to SRFD 1, and Respondent states in its response to the motion that it will do so for 8 quarterly periods from 2021-2022 if the request is found relevant. C MTC Docs at 4; R Opp to C MTC at 6.

To the extent the parties have agreed to a limited production responsive to any of the requests raised in the motions to compel, that agreement should be honored. Complainant has not demonstrated the relevance of the data sought in SRFDs 1, 3, and 4 to the alleged Shipping Act violations through the motion to compel, but perhaps it did so to Respondent's satisfaction post-filing, as both parties indicate they have conferred regarding a limited production. Further, Respondent asserts it has produced 99-pages of documents responsive to SRFD 4. R Opp to C MTC at 8-9.

SRFD 5 asks for "all correspondence between Respondent and Complainant or RIM Logistics, Ltd. relating to demurrage, detention, per diem and yard storage...free time, port congestion, equipment shortages, lack of appointments for container pick-ups and returns, return capacity at terminals, and restricted access to terminals." C MTC Docs at 6. Respondent produced pages COSCO_00001-000018 (18-pages) in response to this request and does not address it in the opposition. C MTC Docs at 6. Complainant states only that the response "is insufficient," and it expects supplemental production. *Id.* This request is relevant to the alleged Shipping Act violations and if any remaining documents are found by Respondent, they should be produced. I note that this supplemental request appears to overlap with original request 6.

IV. Respondent's Motion for Enlargement of Page Limits

In conjunction with its motions to compel, Respondent filed a motion to enlarge the number of pages it is allowed to file as part of its motion to compel responses to interrogatories and its requests for admissions. As good cause for the enlargement, Respondent asserts that its 15-page motion is "reasonably close" to the 10-page limit set forth in Rule 71, and "it could not reasonably meet" the limit "[b]ecause additional interrogatories and admissions...remain unanswered by Complainant..." Respondent's Motion for Enlargement of Page Limits ("Motion to Enlarge") at 1. Finally, Respondent asserts that it would not oppose Complainant's motion to

also enlarge its response, and notes that it did not confer with Complainant regarding the filing of the Motion to Enlarge because it did not have “sufficient time to confer” between the May 16, 2024 status conference and the May 31, 2024 deadline to file motions to compel.

While Respondent’s assessment that 5 additional pages is “reasonably close” to the 10-page limit is not convincing and RMTC A&I could have been structured differently to stay within or substantially closer to the page limits, the most concerning part of the Motion to Enlarge is that Respondent did not confer with Complainant. There is no justification for failure to confer over a 15-day period (and had Respondent waited until the deadline of the 31st to file the motions, perhaps it could have conferred on the 30th and narrowed its motions and alerted Complainant to its Motion to Enlarge). The Motion to Enlarge will be granted for the sake of efficiency, but the parties are cautioned that failure to confer before the filing of any future motion will result in the motion being rejected or denied. In addition, the parties must endeavor to stay within the page limits found in the Commission’s Rules.

V. Order

Upon consideration of the record herein, the arguments of the parties, and the conclusions and findings set forth above, it is hereby

ORDERED that Respondent COSCO’s Consent Motion for Entry of Protective Order is **GRANTED**. It is

FURTHER ORDERED that Respondent COSCO’s Motion to Compel Production of Documents is **GRANTED IN PART** and **DENIED IN PART**. It is

FURTHER ORDERED that Respondent COSCO’s Motion to Compel Adequate Responses to Requests for Admission and Interrogatories is **DENIED IN PART** and **DEFERRED IN PART**. It is

FURTHER ORDERED that Complainant VCC’s Motion to Compel Production is **GRANTED IN PART** and **DENIED IN PART**. It is

FURTHER ORDERED that Respondent’s Motion for Enlargement of Page Limits is **GRANTED**. It is

FURTHER ORDERED that Respondent and Complainant are compelled to provide the documents described above by July 31, 2024. It is

FURTHER ORDERED that the parties submit a joint status report by August 2, 2024, regarding the status of discovery, including whether the parties have followed the temporary schedule and proposing an amended schedule if needed.



Linda S. Harris Crovella
Administrative Law Judge